

Court No. - 29

Case :- WRIT - C No. - 28445 of 2024

Petitioner :- Sharmila Prasad

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Akhlendra Pratap Singh, Deleep Kumar Chaudhari

Counsel for Respondent :- C.S.C.

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. Heard learned counsel for the petitioner and learned Standing Counsel for the State respondents.

2. Petitioner claims to be a resident of 332 Daragahiya Nandnagar, Ward No.8, Khorabar @ Soobazar, Post Kunraghat, District Gorakhpur. It is claimed that there is dispute qua to ownership of the property. It is further claimed that petitioner has applied for new electricity connection in the premises in her name and the application of petitioner was allotted Application No.1016218897 on 05.08.2024 but till date connection has not been provided and as such, the petitioner is before this Court seeking a direction in the nature of mandamus to command the respondent no.4 to provide electricity supply/connection in the name of petitioner at the premises.

3. Admittedly, the electricity connection is sought by the petitioner being resident of 332 Daragahiya Nandnagar, Ward No.8, Khorabar @ Soobazar, Post Kunraghat, District Gorakhpur. It is worth to mention that supply of electricity monopolized by U. P. Power Corporation is essential for life and it is impossible to live without electricity and the same cannot be negated. The Division Bench of this Court in ***Writ C No.28295/2014 (Seema Mansoor vs. U.P. Power Corporation Ltd. and others)*** has held that an application for grant of electricity connection cannot be refused by licensee on the ground that there is no consent of the landlord. It is further observed that from the scheme of the Act and the duties cast upon the licensee and right conferred upon the person making application for supply of electrical energy in case he submits indemnity bond, a lessee/tenant or occupier cannot be refused electricity connection merely for want of consent of the landlord. Thus, it is clear that the application of the petitioner can always be

considered as per Clause 4.4 read with Annexure 4.2 and Annexure 4.3 of Electricity Supply Code 2005, which provides either for consent letter of owner of the premises or in the absence thereof indemnity bond is to be furnished by the lessee/tenant or occupier of the premises.

4. Considering the facts and circumstances of the case, no useful purpose would be served in keeping the writ petition pending consideration. The writ petition is ***disposed of*** asking the respondent/competent authority to consider the application of petitioner, if not yet done, in accordance with law and take appropriate decision in three weeks period but certainly after hearing the parties having stake in the matter.

Order Date :- 25.9.2024

A. Pandey